

Town of Georgetown
and the
American Federation of State, County and
Municipal Employees, Council 93, Local 939
AFL-CIO
Fire and Police Signal Operators, D.P.W. & Clerical
Employees

July 1, 2020 – June 30, 2023

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This agreement entered into by the Town of Georgetown, hereinafter referred to as the Employer, and American Federation of State, County and Municipal Employees, AFL-CIO, Council 93, Local 939, hereinafter referred to as the Union, has as its purpose the establishment of rates of pay, hours of work, and other conditions of employment.

ARTICLE 1

RECOGNITION

The employer recognizes the Union as the sole and exclusive bargaining agent for the purpose of establishing wages, hours and other conditions of employment, for all employees of the Town of Georgetown, as certified by MCR3232, specifically:

All Regular full and part time non-supervisory blue collar and clerical employees in the Town of Georgetown; including employees in the following positions: Fire or Police Signal Operators (also herein "Signal Operators"), Laborer, Operator Laborer (In Highway Department), Construction Laborer (In Highway Department) Office Manager (In Board of Assessors Office), Clerical Employees (In the Finance Department and Town Clerk's Office), Administrative Clerk (Highway) and Administrative Assistant (Planning), but excluding School Department personnel and all confidential, managerial and all other employees in the Town of Georgetown.

ARTICLE 2

UNION DUES AND AGENCY SERVICE FEE

The Union may secure authorization for the deduction of Union dues, agency fees and service fees. Upon receipt of the authorization, the Town Treasurer will initiate the deduction of such dues and fees and transmit the same in total upon collection accompanied by a listing detailing names and individual amounts deducted to the Union. The Union agrees to indemnify the Town for all fees, damages and costs in complying with this article.

ARTICLE 3

GRIEVANCE PROCEDURE

Section 1. A Grievance is defined as a dispute, which may arise over the application, meaning or interpretation of this agreement.

Section 2. A Grievance shall be processed as follows:

Step 1. The Union steward shall submit the grievance in writing to the department head within seven (7) calendar days after the occurrence of the incident upon which the grievance is based or seven (7) calendar days after the employee knew or should have known of the occurrence of the incident stating the specific article and section of the agreement that is being disputed and giving details of the incident. The department head shall answer the grievance within fourteen (14) calendar days, but may extend the time of his answer of the grievance upon written notice thereof to the

employee stating his reasons for the extension. The length of time the department head may extend his answer to the grievance shall be no more than seven (7) additional calendar days.

Step 2. If the matter is still not resolved the grievance shall be filed in writing with the Board of Selectmen within seven (7) calendar days after receipt by the Union of the department head's reply or failure to reply. Within fourteen (14) calendar days of such notice, the selectmen shall provide a written disposition of the grievance. The meeting with the Board of Selectmen shall not be a full hearing but an informal meeting for the purpose of resolving the grievance and either side may at their option elect confidentially of such meetings provided they have given written notice of the same to the other party within a reasonable period of time.

Step 3. If the matter is still not resolved either party may within twenty-one (21) calendar days after the date of the Selectmen's written disposition to the employee submit the matter either to the Georgetown Personnel Board or the American Arbitration Association consistent with the rules of the decision of the Personnel Board or the American Arbitration Association shall be final and binding.

Section 3. Neither the Personnel Board nor the arbitrator shall have jurisdiction or authority directly or indirectly to add, alter or modify in any way the terms of this agreement.

Section 4. Costs of arbitration shall be borne equally by both parties.

Section 5. A grievance shall be deemed waived unless:

- A. Submitted to the department head in writing, stating the specific article and section of the agreement being disputed and giving details of the incident, within five (5) working days after the occurrence of the incident upon which the grievance is based; and
- B. Submitted to the Board of Selectmen in writing within five (5) working days after the department head's answer is due; and
- C. Submitted to the Personnel Board or American Arbitration Association within twenty-one (21) calendar days after the Board of Selectmen's answer is due as provided under step 2 under section 2 above.

Section 6. If a grievance involves disciplinary action then at the election of the employee he may skip Step 1 and go directly to Step 2.

Section 7. The time limits expressed in this contract may be extended by both parties by agreement in writing prior to the time to be extended.

ARTICLE 4 **MANAGEMENT RIGHTS**

Section 1. Except as modified by this agreement, the rights of the Town shall be respected at all times, and the provisions of this agreement shall be observed for the orderly settlement of all questions.

Section 2. The Town retains the right and responsibility to:

- A. Hire, discharge, transfer, suspend and discipline employees for good cause;
- B. Determine the number of persons required to be employed;
- C. Determine the qualification of employees;
- D. Make any and **all** reasonable rules and regulations not in conflict with this agreement governing the conduct of the departments;
- E. Determine the work assignments of its employees;
- F. Determine the type of equipment, facilities and work processes to be used;
- G. Determine to make technological alterations by revising either processes or equipment, or both;
- H. Select and locate plants or other facilities;
- I. Establish, expand, transfer, and/or consolidate work processes and facilities;
- J. Transfer or subcontract work.

Section 3. It is understood that all department heads can, and will be performing any and all duties performed by employees of the department

Section 4. Employer shall not subcontract in any manner, which will diversely affect the employee's regular workweek.

ARTICLE 5 DISCRIMINATION AND COERCION

There shall be no discrimination by the employer against any employee because of his activity or membership in the union.

ARTICLE 6 HOURS OF WORK

Section 1. The regular workweek for permanent, full time employees shall be forty (40) hours within any seven-day period, except for those employees specifically hired for lesser hours. The above notwithstanding, Signal Operators will work a 4-2 schedule.

Section 2. Assignment of duties and time of employment will be at the discretion of the department head upon proper and reasonable notice, except for emergencies.

Section 3. It is understood that the possibility of being called out for an emergency is part of the job, inasmuch as the safety of the public is involved; and as such the employee shall be required to report to work when directed.

Section 4. It is agreed that there will be some interchange of personnel between departments at the discretion of the department heads. However, it is agreed that in so doing the employee will receive compensation at rate of job performance if it is a higher paying job.

Section 5. In each regular workweek there shall be two (2) days off.

Section 6. Employees shall be paid overtime at the rate of one and one-half (1½) times their regular rate of pay for time in excess of their regular work week.

Section 7. All employees called back to work after having completed their assigned shifts shall be guaranteed four (4) hours pay at time and one-half (1½), including dispatchers called in for matron duty.

Section 8. Dispatch – The 3 shift dispatchers have the option, with the police Chief's approval, of a 4 and 2 schedule, or a 5 and 2 schedule with Fridays at 2300 hours to Sunday 2300 hours as days off, and every 3rd Thursday/Friday off. This is to mirror the department admin position.

ARTICLE 7

TERMS OF EMPLOYMENT

Section 1. New employees shall be on probation for six (6) months. The Town retains the right to dismiss a probationary employee without recourse to the grievance or arbitration procedure, and he/she shall have no seniority status nor bidding nor bumping rights.

Section 2. Employees who have terminated service with the town shall not be eligible for retroactive pay increases or benefits except those employees who retire during negotiations and those who for serious medical reasons are unable to continue employment with the Town.

ARTICLE 8

SUSPENSION AND DISCHARGE

No employee shall be suspended or discharged without sufficient cause and the employer shall notify the union in writing forty eight (48) hours prior to any suspension or discharge of an employee unless the situation calls for immediate action.

ARTICLE 9

SENIORITY

The principle of seniority shall govern and control in all cases of decrease of working force as well as priority in work assignments. Seniority shall begin on the date of hire to a permanent vacancy.

ARTICLE 10

HOLIDAYS (HIGHWAY AND CLERICAL EMPLOYEES ONLY)

Section 1. The following days shall be recognized as paid, legal holidays on which days permanent employees shall be excused from all duty not required to maintain essential Town services:

New Year's Day
Martin Luther King Jr. Day
President's Day
Patriot's Day
Memorial Day
Independence Day

Labor Day
Columbus Day
Veteran's Day
Thanksgiving Day
Day after Thanksgiving
Christmas Day

Section 3. If a holiday falls on an employee's normal day off, the nearest scheduled working day will be considered to be the holiday.

Section 4. Employees who work on a holiday shall be paid at one and one half (1½) times their straight time in addition to their holiday pay or be entitled to compensatory time off at the discretion of the department head. Holiday pay will be granted provided the employee works the majority of his/her shift on the day recognized as the Holiday.

Section 5. If one of the holidays listed above falls on a Sunday, the following day shall be a legal holiday. If a holiday falls on a Saturday, the preceding day shall be the legal holiday. Except Signal Operators.

Section 6. Except as provided for in Article 10, Section 2 and 3, there shall be no duplication of holiday pay if the day is otherwise paid for.

Section 7. The department head shall select the compensatory time off to be taken by employees.

Section 8. Highway - The Town shall pay DPW employees double time for working on the following holidays: Thanksgiving, Christmas, New Year's Day, and July 4th.

ARTICLE 10A HOLIDAYS (SIGNAL OPERATORS ONLY)

Section 1. The following days shall be recognized as paid, legal holidays:

New Year's Day
Martin Luther King Jr. Day
President's Day
Patriot's Day
Memorial Day
Independence Day

Labor Day
Columbus Day
Veterans Day
Thanksgiving Day
Day after Thanksgiving
Christmas Day

Section 2. If the holiday occurs within an employee's vacation period, he shall be paid at his/her basic hourly rate in addition to his holiday pay or be entitled to a compensatory day off.

Section 3. Employees who work on a holiday shall be paid at one and one half (1½) times their straight time in addition to their holiday pay or be entitled to compensatory time off at

the discretion of the department head. Holiday pay will be granted provided the employee works the majority of his/her shift on the day recognized as the Holiday.

Section 4. Except as provided for in Article 10, Section 2 and 3 there shall be no duplication of Holiday pay if the day is otherwise paid for.

Section 5. The Chief of Police shall have the option of approving or disapproving the compensatory time off to be taken by Signal Operators.

Section 6. In the event an employee requests time off by use of compensatory time owed, written notice must be submitted at least ten (10) calendar days prior to said time off.

ARTICLE 11 **VACATIONS**

Section 1. All employees who have worked for the employer for one (1) calendar year from the date of employment shall receive two- (2) weeks vacation (10 days paid).

Section 2. All employees who have worked for the employer for five (5) continuous calendar years from the date of employment shall receive three- (3) weeks vacation.

Section 3. All employees who have worked for the employer for ten (10) continuous calendar years from the date of employment shall receive four- (4) weeks vacation.

Section 4. All employees of the bargaining unit will be credited with one additional vacation day for each year worked beyond their 10th year up to a maximum of ten (10) additional days. (Employees who have previously earned more than ten (10) additional vacation days will be capped at their current level.)

Section 5. Employees who wish to take one (1) week or more of vacation shall give a minimum of two (2) weeks' notice. Employees who wish to take less than one-week vacation shall give a minimum of one- (1) weeks' notice. Requests for vacation time shall be submitted at least ten (10) calendar days in advance, except for emergencies, for approval purposes. The granting of vacation is at the discretion of the department head.

Section 6. Vacation periods shall run with the Town's fiscal year, July 1st to June 30th. Vacation time shall not be accumulative.

Section 7. All employees under this Agreement shall be afforded the opportunity of carrying over one (1) work week of vacation time from year to year at the discretion of the Chief of Police in the case of the Signal Operators, the Highway Surveyor in the case of employees of the Highway Department, the Board of Assessors in the case of the Assistant Assessors, and the Town Administrator in the case of all other employees hereunder. Any employee wishing to carry over vacation time must provide notice, as appropriate, to the Chief of Police, the Highway Surveyor, the Board of Assessors or the Town Administrator, no less than 30 days before the end of the then current year.

Section 8. In the event that a bargaining unit member meets the criteria for bereavement leave under Article 13 while taking a scheduled vacation, the member may ask to convert the vacation time to bereavement. The Town may ask for documentation to support the request.

ARTICLE 12 **SICK LEAVE**

Section 1. Effective July 1, 1989, sick leave accumulation shall be at one day and one-half (1½) per month up to a maximum of two-hundred (200) days. For new (7/1/2011 or after) hires the maximum sick leave accrual shall be one-hundred and fifty (150) days.

Section 2. For employees hired before July 1, 2011, effective July 1, 1994, Employees shall receive \$25.00 per day buy back of accumulated sick days up to a maximum of 150 days after retirement, or death. If termination is caused by death, payment will be made to the employee's estate.

For employees hired on or after July 1, 2011, the maximum sick leave reimbursement shall be 50% of the accrued sick days (not to exceed 75 days) at the rate of \$25.00 per day

Section 3. At the end of the fiscal year, unit members who have not used any sick days in the fiscal year shall be granted three (3) days of compensatory time. Any unit member who has used one (1) sick day in the fiscal year shall be granted two (2) days of compensatory time. A unit member who has used two (2) sick days in the fiscal year shall be granted one (1) day of compensatory time. No compensatory time shall be granted for use of three or more sick days.

Section 4. Sick leave to be used in one-hour increments.

ARTICLE 13 **BEREAVEMENT LEAVE**

Section 1. In the event of death in the immediate family of an employee, the employee will be granted leave with pay in the amount of three (3) working days, and such leave will not be charged to sick leave or vacation leave. Bereavement leave shall cover the time absent during Monday through Friday, excluding holidays, vacation, or other time normally worked.

Section 2. Immediate family shall mean spouse, children, brother, sister, mother, father, mother-in-law, father-in-law, foster children, stepchildren, grandchildren, significant other, grandparent, brother-in-law and sister-in-law. If extenuating circumstances require additional days for bereavement, up to three additional days may be granted by the department head. These additional days may be taken from any and all authorized paid leave (except sick time), or as unpaid leave. In the event of death of an aunt, uncle, niece, or nephew an employee will be granted leave with pay in the amount of one (1) working day.

Section 3. There shall be no duplication of bereavement leave if the day is otherwise paid for.

ARTICLE 14
MILITARY LEAVE

An official leave of absence of six (6) months or more without pay will be granted for active duty in any branch of the Armed Forces of the United States. When the person is released from such service, he/she will be eligible for re-employment provided he notifies the Town in writing 45 days prior to his/her return to employment.

ARTICLE 15
JURY PAY

The employer agrees to make up the difference in any employee's wages between a normal week's wages and compensation received for jury duty. The employee agrees to return to work if excused from jury duty by 11:00 A.M. on the same day.

ARTICLE 16
WAGES

Employees shall be paid in accordance with the wage schedule set forth in Appendix A, reflecting the following across the board increases:

Effective July 1, 2020:	2%
Effective July 1, 2021:	2%
Effective July 1, 2022:	2%

ARTICLE 17
STRIKE PROVISIONS

The Union agrees that during the term of this contract or while negotiations are being held for a subsequent contract neither the Union, its agents, nor its members will authorize aid, or assist, instigate, or engage in any work stoppage, slowdown, refusal to work, or strike against the Town.

ARTICLE 18
MISCELLANEOUS PROVISIONS

Section 1. Personal Leave. All employees within the bargaining unit shall be allowed three (3) personal days per fiscal year, not to be charged to any other leaves. The taking or use of personal days shall be consistent with the policy in the Town's Personnel Handbook.

Section 2. Longevity will be paid to all members of the bargaining unit using the schedule below:

Effective

5 Years of service	\$500
10 Years of service	\$550
15 Years of service	\$600
20 Years of service	\$700

Longevity payment will be made during the first payroll period following the anniversary date of the employee's start date.

Section 3. When necessary, leave shall be granted to employees in accordance with the Family and Medical Leave Act. During said leave employees may at their option draw according to the following gradation, where such time has been accumulated-for self: sick leave, then vacation leave then compensatory time, then personal time. For a family member: vacation leave, then compensatory time, then personal time, then sick time in whatever increments they choose.

Section 4. The Final Contract must be signed by both parties.

Section 5. An employee who works a double shift and is therefore unable to vote in a town, state or federal election shall be granted paid leave for a period not to exceed two (2) hours for the sole purpose of voting in the election.

ARTICLE 19

SIGNAL OPERATORS

Section 1. A dispatcher assigned to the first shift whose hours of work preclude him/her from voting in a town, state or federal election shall be granted paid leave for a period not to exceed two (2) hours for the sole purpose of voting in the election.

Section 2. All full-time signal operators shall be offered a minimum of five (5) overtime shifts per year.

Section 3. All dispatchers who maintain an updated Emergency Medical Dispatcher certification shall receive an annual stipend of \$700 in FY21, \$800 in FY22 and \$900 in FY23.

Section 4. The Dispatch Supervisor shall serve as the Town's Criminal Justice Information Services ("CJIS") representative.

Section 5. There shall be a uniform allowance each year of \$400.00 dollars for the purchase of clothing and for shoes to meet uniform requirements pursuant to Policy & Procedure as outlined in Chapter 890. To receive the allowance the employee shall present a paid receipt for the clothing and for footwear purchased by the employee.

Section 6. When a permanent vacancy exists on any shift, before filling said shift permanently, existing full-time dispatchers will be given the opportunity to fill the vacancy by seniority and qualifications to be determined by the Chief of Police.

In the case of a full-time signal operator being out on prolonged sickness or injury, current full-time signal operators will be given the opportunity to fill the temporary vacancy by seniority and qualifications to be determined by the Chief of Police.

ARTICLE 20 HIGHWAY EMPLOYEES

Section 1. The Town shall pay for or provide training necessary for DPW employees to maintain hoisting licenses. The Town shall also pay for the DOT physical necessary for DPW employees to maintain hoisting licenses.

Section 2. The Town agrees to reimburse employees for Hydraulic, Class A & B Licenses.

Section 3. There shall be a uniform allowance for the Highway department employees which shall be paid 100% by the Town. Each employee shall be allowed a \$700.00 per year work clothing and shoe/boots allowance. To receive the allowance the employee shall present a paid receipt by the employee.

Section 4. If a Highway employee is called in to work in response to a snow event, he/she shall be paid at a rate of time and one-half for all hours worked until two hours after the conclusion of the snow event. For example, if an employee is called in to plow snow at 4:00 a.m. on a regular day of work, and the snow event ends that day at 9:00 a.m., the employee will be paid at a rate of time and one-half from 4:00 to 11:00 a.m. This provision shall not apply to instances in which an employee is called in to salt roads *before* an expected snow event.

Section 5. If a Highway employee works in excess of 40 hours in a given workweek, with prior approval of the Highway Superintendent, he/she may opt to receive compensatory time in lieu of cash payment for hours worked in excess of 40. Compensatory time shall be earned at a rate of time and one-half for every hour worked in excess of 40. Employees shall not be permitted to accrue more than 40 hours of compensatory time in a given fiscal year.

Section 6. Employees called in to work on a Sunday or Holiday shall be guaranteed four (4) hours pay at double-time.

Section 7. If a Highway Department employee performs work for the Light or Water Department, he/she shall be paid at a rate of \$30.00 for all hours worked for such department, and time and one-half that rate for hours worked for the Light or Water Departments outside of an employee's regular work schedule.

Section 8. A detail/inspectional rate of \$42.00/hr. For private (outside) details necessitated by a state of emergency declared by the Governor, or the Chairperson of the Board, the

detail rate shall be 1.5 times the usual detail rate (i.e. the state of emergency private detail rate shall be \$63.00 per hour).

ARTICLE 21
DURATION

Section 1. This agreement shall take effect July 1, 2020 and shall expire June 30, 2023.

Section 2. On or about January 2, 2023, with proper notification, the parties shall meet to confer on a new agreement. If an agreement is not reached by June 30, 2023, this contract shall remain in full force until the parties reach a new agreement.

In witness whereof, each of the parties hereunto has caused those present to be executed this 17th day of March 2021.

AFSCME Council 93, Local 939

Mark Phil
[Signature]
Carl Maillenc
AFSCME Council 93

Date: 3/17/21

Town of Georgetown

DocuSigned by:
Charles Durrey
DAE8E98E80674D1...
DocuSigned by:
[Signature]
A86CF03AF49F44F...
DocuSigned by:
Peter J. Kershaw
DAB875A38F6344F...
DocuSigned by:
Douglas Dawes
612D8C8E7D8F4FC...
Date: 5/20/2021

APPENDIX A
WAGE SCHEDULE

HIGHWAY

	FY20	FY21	FY22	FY23
Lead Foreman	\$32.16	32.80	33.46	34.13
Foreman	\$31.10	31.73	32.26	33.01
Lead Operator	\$26.75	27.28	27.83	28.38
Operator II	\$25.10	25.60	26.11	26.63
Operator I	\$23.54	24.01	24.49	24.98
Truck Driver	\$21.99	22.42	22.87	23.33

DISPATCH

Dispatcher 1 st Shift	\$22.91	23.37	23.84	24.31
<i>Additional 2% after 6 years</i>	\$23.37	23.84	24.32	24.80
Dispatcher 2nd Shift (3% Diff)	\$23.14	24.07	24.55	25.04
<i>Additional 2% after 6 years</i>	\$23.60	24.55	25.04	25.54
Dispatcher 3rd Shift (6% Diff)	\$23.60	24.77	25.27	25.77
<i>Additional 2% after 6 years</i>	\$24.07	25.27	25.78	26.28
Dispatch Supervisor	\$25.17	30.77	33.94	37.17
<i>Additional 2% after 6 years</i>		\$31.39	34.61	37.91

CLERICAL

Assistant Assessor/Clerk	27.57	28.12	28.68	29.26
Clerk, Level 1	\$22.60	23.05	23.51	23.98
Clerk, Level 2	\$21.44	21.86	22.30	22.75
Clerk, Level 3	\$20.65	21.06	21.49	21.92